

*Number* 17 *of* 1965

# EXTRADITION ACT 1965

**REVISED**

**Updated to 1 February 2019**

This Revised Act is an administrative consolidation of the *Extradition Act 1965*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including *Local Government Act 2019* (1/2019), enacted 25 January 2019, and all statutory instruments up to and including *Brown Crab (Conservation Of Stocks) Regulations 2019* (S.I. No. 26 of 2019), made 1 February 2019, were considered in the preparation of this Revised Act.

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*Number* 17 *of* 1965.

**EXTRADITION ACT 1965**

**REVISED**

**Updated to 1 February 2019**

AN ACT TO AMEND THE LAW RELATING TO EXTRADITION. [19*th July*, 1965.]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS :—

## PART I

### Preliminary

Short title.

**1.**—This Act may be cited as the Extradition Act, 1965.

Commencement.

**2.**—This Act shall come into operation on such day as the Minister by order appoints.

Interpretation.

**3.**—(1) In this Act—

"act" includes omission;

**[**'country' includes—

(*a*) a place or territory for whose external relations a country, other than that place or territory, is (in whole or in part) responsible, and

(*b*) a place or territory for whose external relations the government of a country, other than the government of that place or territory, is (in whole or in part) responsible.**]**

"detention order", in relation to another country, means any order involving deprivation of liberty which has been made by a criminal court in that country in addition to or instead of a prison sentence;

"diplomatic agent" means an ambassador extraordinary and plenipotentiary, envoy extraordinary and minister plenipotentiary or chargé d'affaires;

"extradition" means the surrender of a person under the provisions of Part II to a country in relation to which that Part applies;

"extradition agreement" has the meaning assigned to it by subsection (1) of section 8;

(*b*) in such provisions of this Act as are specified in an order under subsection (1A) (inserted by section 52 of the European Arrest Warrant Act 2003) of section 4 of the Extradition (European Union Conventions) Act 2001, a country designated by that order, to which the provisions so specified apply.**]**

**[[**(1B) For the purposes of the amendments to this Act effected by Part 3 of the Extradition (European Union Conventions) Act 2001, 'Convention country' means—

(*a*) a country designated under section 10(1) of that Act, or

(*b*) in such provisions of this Act as are specified in an order under subsection (1A) (inserted by section 52 of the European Arrest Warrant Act 2003) of section 10 of the Extradition (European Union Conventions) Act 2001, a country designated by that order, to which the provisions so specified apply.**]**

(1C) For the purposes of this Act and the Convention of 1996, the Central Authority in the State shall be the Minister.**]**

(2) This Act applies, except where otherwise provided, in relation to an offence whether committed or alleged to have been committed before or after the passing of this Act.

Laying of orders before Houses of Oireachtas.

**[**4.—Every order under section 8 of this Act made after the commencement of section 48 of the European Arrest Warrant Act 2003 shall be laid before each House of the Oireachtas as soon as may be after it is made and, if a resolution annulling the order is passed by either such House within the next 21 days on which that House sits after the order is laid before it, the order shall be annulled accordingly, but without prejudice to the validity of anything previously done thereunder.**]**

Expenses.

**5.**—The expenses incurred by the Minister in the administration of this Act shall, to such extent as may be sanctioned by the Minister for Finance, be paid out of moneys provided by the Oireachtas.

Repeals.

S.R. & O. No. 431 of 1947.

**6.**—(1) Each of the enactments specified in the Schedule to this Act is hereby repealed to the extent set out in the third column of that Schedule.

(2) Rule 74 (3) of the District Court Rules, 1948, shall cease to have effect.

Transitory provisions.

**7.**—Any order made under section 2 of the Extradition Act, 1870, and in force immediately before the commencement of this Act shall continue in force and be deemed to be an order made under subsection (1) of section 8 and the arrangement to which it relates shal(1) l be deemed to be an extradition agreement.

(2) An order to which subsection (1) applies shall, if not sooner revoked under section 8, expire on the 1st day of January, 1972.

**[**Admission to bail by High Court.

**7A.**—A person arrested under Part II or III of this Act shall not be admitted to bail except by order of the High Court.**]**

**[**Evidence by affidavit.

**7B.**—**[**...**]]**

## PART II

### Extradition Generally

Endorsement of warrants. **43.**—[...]

Restrictions on endorsement. **44.**—[...]

[Power of AG to direct refusal of endorsement of warrant 44A.—[...]]

[Power of AG to revoke a direction **44B.**—[...]]

[Proof **44C.**—[...]]

[Section 44A restricted **44D.**—[...]]

Execution of warrants. **45.**—(1) [...]

(2) [...]

(3) [...]

Remand of arrested person to District Court. **46.**—[...]

Proceedings before [High Court]. **47.**—[...]

Lapse of time before delivery of arrested person. **48.**—[...]

Provisional warrants. **49.**—[...]

Release of persons arrested. **50.**—[...]

Special provisions for summary offences. **51.**—[...]

Remand. **52.**—[...]

Discharge of persons not taken out of State. **53.**—[...]